

Court No. - 9

Case :- WRIT - C No. - 59836 of 2015

Petitioner :- Brij Mohan Agrawal

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. & Another

Counsel for Petitioner :- Seema Aggarwal

Counsel for Respondent :- Nripendra Mishra

Hon'ble Huluvadi G. Ramesh,J.

Hon'ble Shamsher Bahadur Singh,J.

Heard learned counsel for the petitioner and learned Standing Counsel for the State respondents.

By means of this writ petition the petitioner has prayed for issuance of a writ of certiorari quashing the electricity bill dated 16.09.2015 whereby recovery of electricity bill to the tune of Rs.2,31,834/- has been sought from the petitioner.

Learned counsel for the petitioner states that the petitioner is paying his electricity dues regularly and there has been no arrears of electricity dues upto the month of August, 2015 and after the new electricity meter has been installed by the respondent authority on 14.08.2014 in place of old electricity meter, an exorbitant electricity bill to the tune of Rs.2,31,834/- has been sent to the petitioner by the respondent authority. Learned counsel for the petitioner further states that in this regard the petitioner filed an objection on 28.09.2015 before the respondent authority but the respondent authority disconnected the electricity supply to the petitioner without entertaining his objection and without giving an opportunity of hearing to the petitioner.

Per contra, learned counsel for the respondent has submitted that the writ petition is not maintainable. It is for the petitioner to approach the respondent authority as per the provisions of Clause 6.5 of Uttar Pradesh Electricity Supply Code, 2004 for redressal of his grievance.

In such circumstances, without going into the merit of the case, the writ petition is disposed of with a direction to the petitioner to file a fresh representation/objection before the Respondent No.2, Executive Engineer, Electricity Distribution Division-II, Bulandshahr, within a period of one month from today. In case if any such representation is filed by the petitioner, the authority concerned shall take decision, in accordance with law, by passing a speaking order, after hearing the petitioner. However, till the disposal of the representation/ objection filed by the petitioner the respondent authority is directed to restore the electricity connection of the petitioner and not to take any coercive action against him.

With the aforesaid direction, the writ petition is **disposed of**. No order is passed as to cost.

Order Date :- 30.10.2015

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